



Bart Lorang <lorangb@gmail.com>

Question on M1977-208 Inspection Report

Eschberger - DNR, Amy <amy.eschberger@state.co.us>

Mon, Jul 11, 2022 at 12:28 PM

To: Bart Lorang <lorangb@gmail.com>

Cc: Sarah Lorang <lorang.sarah@gmail.com>, Patrick Lennberg - DNR <patrick.lennberg@state.co.us>

Hi Bart,

That is correct, the approved reclamation plan for the Lyons Quarry mining permit (M-1977-208) includes eventually removing the plant and reclaiming the site to pastureland. A mining permit is issued by our office for the full life of the mine (from development and mining through reclamation), with no deadlines for completing mining at the site. Once mining activities have completed, Rule 3.1.3 requires that reclamation be carried to completion by the operator with all reasonable diligence, and each phase of reclamation be completed within five years from the date that mining has ceased, unless extended by the Division. The five-year period may be applied separately to each phase as it is commenced throughout the life of the mine.

For this site, mining activities are still occurring with the processing of material mined from the Dowe Flats Mine. If mining at the Dowe Flats Mine were to cease, that would have implications on the Lyons Quarry permit. Any changes to the approved plan, such as changing the primary source location for the plant, would need to be reviewed by our office through the appropriate revision submittal. If the operator wants to propose leaving the cement plant operations in place for final reclamation, this would need to be submitted to our office in the form of an Amendment application (to change the post-mining land use to industrial/commercial). Of course, they would need to demonstrate this proposal is compliant with local land use and zoning requirements.

As for the approved reclamation plan, unfortunately, there is not a single document that includes all details of the approved plan. We approve an original permit application, then afterward, the reclamation plan (as well as other portions of the approved permit) can be revised through multiple revisions over the life of the permit. I can tell you we have approved a total of 16 Technical Revisions for this permit since the original application was approved back in 1978. The most recently approved reclamation plan map (from 2004) was enclosed with my last inspection report.

You can review all permit files through our online imaged document system (Laserfiche) which is available on our website at <https://dnrweblink.state.co.us/drms/search.aspx?dbid=0>. You can also access Laserfiche by going to our homepage at <https://drms.colorado.gov> and clicking on "DRMS Weblink (Laserfiche)". Once you're in Laserfiche, just type the permit number (M1977208) into the "Permit No" field (with no dashes or spaces) and hit Enter. Tip: you can sort the files by date by clicking on the "Doc Date" column header.

Hope this helps!

By the way, we did a county shuffle here recently and I am no longer the specialist assigned to Boulder County. The new specialist for this county is Patrick Lennberg, which I'm copying on this email.

Best Regards,

Amy Eschberger
Environmental Protection Specialist



COLORADO
Division of Reclamation,
Mining and Safety
Department of Natural Resources

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